



CHAPTER ii.

An Act to confirm a Provisional Order of the Local Government Board relating to Darlington. A.D. 1915.

[16th March 1915.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Order in
schedule
confirmed.

2.—(1) The Insurance Commissioners may at any time after the passing of this Act by order make such provision as appears to them to be necessary for enabling an insurance committee to be constituted under the National Insurance Act 1911 for the county borough of Darlington.

Provision as
to insurance
committee
for county
borough.

(2) An order under this section may authorise the insurance committee for the county of Durham to continue to act as insurance committee for the said county borough until such date not being later than the first day of July one thousand nine hundred and fifteen as may be specified in the order and may provide for the transfer to the committee constituted by the order of such of the property rights and liabilities of the insurance committee for the said county as relate to persons resident in the said county borough.

A.D. 1915.

(3) An order under this section may provide for such financial adjustments and may contain such other consequential or supplementary provisions as may appear to the Insurance Commissioners necessary or expedient.

(4) An order under this section shall have effect as if enacted in the National Insurance Act 1911 and may be revoked varied or amended by an order made in like manner as the original order.

Transfer of
secondary
schools to
Corporation.

3.—(1) The Darlington High School for Girls including the site and buildings thereof and the furniture fittings books and apparatus in and about the same shall upon the commencement of the Order set out in the schedule hereto and herein-after referred to as "the Order" be transferred to and vested in the mayor aldermen and burgesses of the county borough of Darlington herein-after referred to as "the Corporation" as local education authority to the extent of the interest for which the same are held by the county council of Durham herein-after referred to as "the County Council" as local education authority.

(2) As from the commencement of the Order the agreement dated the twentieth day of April one thousand nine hundred and ten and made between the Corporation of the one part and the County Council of the other part for the tenancy by the County Council of the Darlington Technical College shall be determined and all furniture fittings books and apparatus belonging to or provided by the County Council in and about the said technical college shall at the commencement of the Order be transferred to and vested in the Corporation as local education authority.

(3) All rights duties and liabilities which at the commencement of the Order are existing or owing by or attached to the County Council in respect of the said school and college furniture fittings books or apparatus or with respect to the officers teachers and servants of the same shall (subject to any necessary or proper financial or other adjustment) by virtue of the Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as local education authority.

(4) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised

exclusively in respect of the said school and college or either of them (including the site and school house of the said school and all other land furniture fittings books or apparatus transferred to and vested in the Corporation by this Act) as will be owing at the commencement of the Order and the liability for the payment of the interest on that part of the said loan shall by virtue of this Act be transferred to and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of the Order shall be charged on the borough fund and borough rate of the county borough of Darlington herein-after referred to as "the borough" and shall be repaid by the Corporation within the period for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable. A.D. 1915.

4.—(1) The agreement dated the sixth day of September one thousand eight hundred and eighty-eight for the consolidation of the county police establishment and the police establishment of the borough shall be and is hereby determined as from the expiration of a period of twelve months from the commencement of the Order and in respect of that period the Corporation shall once in each half-year pay to the treasurer for the time being of the county such proportion of the expenses of the present consolidated police establishment as the value for county rate purposes of the rateable property situate within the existing borough and the added areas immediately before the commencement of the Order bore to the total value for such purposes of the rateable property in the county (including the existing borough and the added areas) and the treasurer aforesaid shall in each such half-year send to the Corporation an account in writing showing the amount so payable and the same shall be paid to the said treasurer within one month after the delivery of such account. As to police.

(2) For the purpose of subsection (1) of this section the expenses of the present consolidated police establishment shall include the expenses of every police establishment consolidated with the county police establishment and shall include expenditure on chief constables superintendents inspectors serjeants constables and recruits court-houses police stations cells residences for police and any deficiency in respect of the police pension fund and payments of interest on and of instalments of or

A.D. 1915. sinking fund contributions in respect of moneys borrowed for any of those purposes but in arriving at such expenses credit shall be given by the County Council for all sums received by them and credited to the police account in respect of fines fees or other receipts in aid (not being a sum transferred from the Exchequer contribution account of the County Council or a grant made to the County Council out of public moneys or moneys provided by Parliament) and for all payments made to the County Council (otherwise than by the Corporation) under any agreement for the consolidation of any county borough police establishment with the county police establishment.

(3) In making an equitable financial adjustment of the Exchequer contribution account under the Local Government Act 1888 herein-after referred to as "the Act of 1888" as amended by the Local Government (Adjustments) Act 1913 the Corporation shall be deemed to have been maintaining a separate police force under the County and Borough Police Acts and the half costs of pay and clothing of their police force shall be deemed to be a compulsory payment under section 24 of the Act of 1888.

(4)—(a) At the expiration of the said period of twelve months such number of the members of the police force of the county as shall be determined by agreement to be made within nine months from the commencement of the Order between the standing joint committee of the county and the watch committee of the borough shall be transferred to and become the police force of the borough and in default of an agreement between the said committees as to such number or as to the officers and constables to be transferred the same shall be determined by a Secretary of State Provided always that no member of the police force of the county shall be transferred to or become part of a separate police force of the borough under the provisions of this section unless such member consents to be so transferred.

(b) Every member of the county police force transferred in pursuance of this section shall hold office in the police force of the borough upon the same tenure and upon the same terms and conditions as he would have held office in the county police force if this Act had not been passed and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he may be entitled

shall not be less than they would have been if this Act had not been passed. A.D. 1915.

(5)—(a) An equitable apportionment respecting the police pension fund of the county shall be made within six months after the expiration of the said twelve months from the commencement of the Order by agreement between the County Council and the Corporation or in default of agreement by an arbitrator appointed by a Secretary of State and for the purposes of such apportionment any agreement made or any arbitrator appointed in pursuance of this subsection shall be deemed to have been made or appointed in pursuance of section 62 of the Act of 1888.

(b) Such apportionment shall be made according to the length of approved service in the county police force of the officers and constables retained in the county police force and the length of approved service in the county police force of the officers and constables transferred to the borough police force and shall take effect as from the expiration of twelve months from the commencement of the Order.

(6) No constable transferred in pursuance of this section shall be deemed to have removed to another police force within the meaning of section 15 of the Police Act 1890 and for the purposes of that Act and of the Police (Superannuation) Act 1906 the Corporation shall after the expiration of twelve months from the commencement of the Order be deemed to be the police authority in whose service any constable so transferred shall have served any approved service which he shall have served with the police authority of the county and the Corporation shall accordingly bear and pay any pension to which such constable shall be entitled in respect of any service with the police authority of the county.

(7) All the county police stations situate in any part of the borough with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of this Act and subject to adjustment under section 62 of the Act of 1888 be transferred to and vested in the Corporation as from the expiration of the said period of twelve months for all the estate and interest therein of the County Council.

5. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (No. 23) Act 1915.

A.D. 1915.

S C H E D U L E.

BOROUGH OF DARLINGTON.

*Darlington
Order.*

*Provisional Order made in pursuance of the Local
Government Act 1888 for altering a Borough
and constituting a County Borough.*

To the Mayor Aldermen and Burgesses of the Borough of
Darlington;—

To the Justices of the Peace for the said Borough;—

To the Justices of the Peace for the County of Durham in
Quarter Sessions assembled;—

To the County Council of Durham;—

To the Rural District Council of Darlington;—

To the Guardians of the Poor of the Darlington Union;—

To the Parish Councils of Blackwell Cockerton and Haughton-le-
Skerne;—

To the Chairman of the Parish Meeting of the Township of
Archdeacon Newton;—

To the Overseers of the Poor of each of the Parishes or
Townships of Archdeacon Newton Blackwell Cockerton Dar-
lington Haughton-le-Skerne and Walworth;—

And to all others whom it may concern.

51 & 52 Vict. c. 41. WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough or for constituting any
Borough having a population of not less than fifty thousand into a
County Borough;

And whereas the Borough of Darlington in the County of Durham
is a Borough within the meaning of the Local Government Act 1888
and the inhabitants are a body corporate by the name of the
Mayor Aldermen and Burgesses of the Borough of Darlington and
act by the Council of the said Borough which now consists of the
Mayor (who is also an Alderman) five other Aldermen and eighteen
Councillors and the said Borough is for the purpose of the election
of Councillors divided into six wards;

Provisional Order Confirmation (No. 23) Act, 1915.

And whereas the said Borough has and as proposed by this Order to be altered will have a population exceeding fifty thousand;

A.D. 1915.

*Darlington
Order.*

And whereas the said Borough is co-extensive with the Parish of Darlington and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas a portion of the said Borough and Parish of Darlington is isolated and detached from the remainder of the said Borough and Parish and immediately adjoins the Township of Blackwell in the said County;

And whereas the said Borough has a separate commission of the peace;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Durham are the local education authority for the other purposes of that Act;

2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the schedule to this Order and of the Confirmation Acts specified in Part II. of the said schedule so far as the last-mentioned Acts relate to the Orders specified in that schedule are in force in the said Borough;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict. c. 34.

(b) The Public Health Acts Amendment Act 1890;

53 & 54 Vict. c. 59.

(c) The Baths and Washhouses Acts 1846 to 1899; and

9 & 10 Vict. c. 74.

10 & 11 Vict. c. 61.

41 & 42 Vict. c. 14.

45 & 46 Vict. c. 30.

59 & 60 Vict. c. 59.

62 & 63 Vict. c. 29.

55 & 56 Vict. c. 53.

56 Vict. c. 11.

1 Edw. 7. c. 19.

(d) The Public Libraries Acts 1892 to 1901;

are in force in the said Borough;

And whereas the Council of the said Borough are the authority for the execution of the Burial Acts 1852 to 1906 within the Borough;

15 & 16 Vict. c. 85.

6 Edw. 7. c. 44.

And whereas the Parishes of Cockerton and Haughton-le-Skerne in the County of Durham immediately adjoin the said Borough and those parishes and the Townships of Archdeacon Newton and Blackwell in the said County are contributory places in the Rural District of Darlington and are subject to the jurisdiction of the Rural District Council of Darlington and one Rural District Councillor is elected for each of the Parishes or Townships of Cockerton Haughton-le-Skerne and Blackwell and the Township of Archdeacon Newton is for the purpose of the election of one Rural District Councillor united with the Township of Walworth in the said Rural District;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the said Rural District;

A.D. 1915.

*Provisional Order Confirmation (No. 23) Act, 1915.**Darlington
Order.*3 & 4 Will. 4.
c. 90.

And whereas the Lighting and Watching Act 1833 has been adopted in the whole or part of each of the Parishes of Cockerton and Haughton-le-Skerne ;

And whereas the Parishes of Cockerton Darlington and Haughton-le-Skerne and the Townships of Archdeacon Newton Blackwell and Walworth are included in the Darlington Union and the Parish of Darlington is for the purpose of the election of Guardians divided into seven wards and one Guardian is elected for one of those wards and three Guardians are elected for each of the remaining wards and the four Rural District Councillors elected for the Parishes of Cockerton and Haughton-le-Skerne and the Townships of Blackwell Archdeacon Newton and Walworth are the representatives of those Parishes and Townships on the said Board of Guardians ;

56 & 57 Vict.
c. 73.

And whereas the Parishes of Cockerton and Haughton-le-Skerne and the Township of Blackwell are Rural Parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been established ;

And whereas in pursuance of the Education Act 1902 the Parishes of Cockerton and Haughton-le-Skerne and the Townships of Blackwell and Archdeacon Newton form part of the area of the County Council of Durham as the local education authority ;

And whereas by virtue of an Order of the Local Government Board dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered by subsequent Orders of that Board the number of County Councillors for the Administrative County of Durham is seventy-eight and the said Borough comprises four Electoral Divisions of the said County and the Parishes of Cockerton and Haughton-le-Skerne and the Townships of Archdeacon Newton and Blackwell are included in the Aycliffe Electoral Division of the said Administrative County :

51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

PART I.

PRELIMINARY.

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means the First day of April One thousand nine hundred and fifteen ;

Provisional Order Confirmation (No. 23) Act, 1915.

- (2) The expression "the existing Borough" means the Borough of Darlington as it existed immediately prior to the commencement of this Order; A.D. 1915.
Darlington Order.
- (3) The expression "the Borough" means the existing Borough as altered by this Order;
- (4) The expression "the Corporation" means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;
- (5) The expressions "the County" and "the County Council" mean respectively the Administrative County of Durham and the County Council of that County;
- (6) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Darlington and the Rural District Council of that District;
- (7) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Darlington as altered 1914" and sealed with the official seal of the Local Government Board;
- (8) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Darlington as altered 1914" and sealed with the official seal of the Local Government Board;
- (9) The expression "the added areas" means the parts of the Rural District added to the existing Borough by this Order;
- (10) The expressions "the added part of Cockerton" and "the added part of Haughton-le-Skerne" mean respectively the parts of those Parishes which are coloured blue and green on the Borough maps and the expression "the excluded part of Cockerton" means the remaining part of that parish;
- (11) The expression "the excluded part of Darlington" means as the context requires the part of the existing Borough or of the existing Parish of Darlington which is coloured yellow on the Borough maps;
- (12) The expressions "the existing Parish of Darlington" "the existing Parish of Haughton-le-Skerne" "the existing Township of Archdeacon Newton" and "the existing Township of Blackwell" mean in each case the Parish or Township as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Darlington" "the Parish of Haughton-le-Skerne" "the

[Ch. ii.] *Local Government Board's* [5 GEO. 5.]
Provisional Order Confirmation (No. 23) Act, 1915.

A.D. 1915.
 —
Darlington
Order.

Township of Archdeacon Newton" and "the Township of Blackwell" mean in each case the Parish or Township as altered by this Order;

(13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

(14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

(15) The expression "the Burial Acts" means the Burial Acts 1852 to 1906.

Commence-
 ment of
 Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of April One thousand nine hundred and fifteen:

Date of
 operation of
 Order for
 parish bur-
 gess lists &c.

51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held under the provisions of this Order in the year one thousand nine hundred and fifteen and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATION OF BOROUGH RURAL DISTRICT AND PARISHES.

Alteration of
 Borough
 and Rural
 District.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink and yellow on the Borough maps shall be altered as follows:—

(a) So much of the Rural District as comprises the added part of Cockerton and the added part of Haughton-le-Skerne shall be separated from the Rural District and included in the existing Borough; and

(b) So much of the existing Borough as comprises the excluded part of Darlington shall be separated from the existing Borough and included in the Rural District

A.D. 1915.

Darlington Order.

and the boundary of the Borough shall be that shown by the red line on the Borough maps.

(2) The added areas shall for the purposes of the Municipal Corporations Acts and for all other purposes be included in the Borough and the excluded part of Darlington shall for the like purposes be excluded from the Borough.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within fourteen days after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council to the clerk to the Guardians of the Darlington Union to the Registrar-General to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Postmaster-General to the Board of Trade and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries.

Deposit of maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the Borough fund.

Copies of map to be evidence.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough and the excluded part of Darlington shall be included within the Darlington Petty Sessional Division of the County until the quarter sessions of that County shall otherwise direct:

Powers and duties of justices &c. extended.

Provided that every person committing an offence in any part of the added areas or of the excluded part of Darlington prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

[Ch. ii.] *Local Government Board's* [5 GEO. 5.]
Provisional Order Confirmation (No. 23) Act, 1915.

A.D. 1915.
Darlington
Order.

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas or of the excluded part of Darlington may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Parish bur-
 gess lists &c.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the Borough.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty arising in the year One thousand nine hundred and fifteen in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing Borough or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Number of
 Councillors
 and Alder-
 men.

Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-four and the number of Aldermen of the Borough shall be increased from six to eight.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
 wards.

(1) For the purposes of the election of Councillors the Borough shall be divided into eight wards which shall be named

Provisional Order Confirmation (No. 23) Act, 1915.

respectively the Harrowgate Hill Ward the North Road Ward the Eastbourne Ward the Cockerton Ward the Pierremont Ward the Central Ward the West Ward and the South Ward :

A.D. 1915.

Darlington Order.

- (2) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps : Boundaries of wards.

- (3) Three Councillors shall be assigned to each of the said wards.

Art. IX. The first election of a town council for the Borough shall be held in the months of March and April One thousand nine hundred and fifteen and the following provisions shall apply with regard to such election :—

Provisions for election of Councillors and Aldermen in 1915.

- (a) The town clerk and the Mayor of the existing Borough or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing Borough shall be the returning officer at the election for all the wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards :
- (b) Twenty-four Councillors of the Borough shall be elected on the Thirty-first day of March One thousand nine hundred and fifteen and eight Aldermen of the Borough shall be elected on the First day of April One thousand nine hundred and fifteen :
- (c) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing Borough who shall be in office on the Thirty-first day of March One thousand nine hundred and fifteen shall go out of office on that date and all the Aldermen of the existing Borough who shall be in office on the First day of April One thousand nine hundred and fifteen shall go out of office on that date and all the said Councillors and Aldermen shall if otherwise qualified be eligible for election as Councillors of the Borough on the Thirty-first day of March One thousand nine hundred and fifteen.

Art. X.—(1) The Councillors elected for the Borough in the month of March One thousand nine hundred and fifteen in pursuance of this Order shall retire as follows :—

Retirement of Councillors and Aldermen elected in 1915.

- (a) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and fifteen :

[Ch. ii.] *Local Government Board's* [5 GEO. 5.]
Provisional Order Confirmation (No. 23) Act, 1915.

A.D. 1915.
Darlington
Order.

(b) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and seventeen :

(c) The other Councillor for each ward on the First day of November One thousand nine hundred and sixteen.

(2) The Aldermen elected for the Borough on the First day of April One thousand nine hundred and fifteen in pursuance of this Order shall retire as follows :—

(a) The four Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and seventeen :

(b) The other four Aldermen on the Ninth day of November One thousand nine hundred and twenty :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the First day of April One thousand nine hundred and fifteen or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

First meeting
of Council
and election
of Mayor.

Art. XI.—(1) The first meeting of the Council of the Borough shall be held on the First day of April One thousand nine hundred and fifteen at twelve o'clock noon and the first business to be transacted at the meeting shall be the election of the Mayor of the Borough who shall hold office until the Ninth day of November One thousand nine hundred and fifteen.

(2) The provisions of the Municipal Corporations Acts so far as they are applicable and are not inconsistent with the provisions of this Order shall apply to such first meeting as if it were the quarterly meeting of the Council held at noon on the Ninth day of November within the meaning of those Acts.

(3) If any difficulty arises with respect to the first meeting of the Council of the Borough the Local Government Board may by order do anything which appears to them to be necessary or expedient for the proper holding of the first meeting.

Any such order may modify any provisions of this Order and any enactments applied by this Order so far as appears to the Local Government Board to be necessary or expedient for carrying the order into effect.

Local Acts
and Orders.

Art. XII.—(1) So much of Section 8 of the Darlington Extension and Improvement Act 1872 as relates to the wards of the existing

A.D. 1915.

*Darlington
Order.*

may be and as if the Corporation and the Borough or the Rural Council and the Rural District as the case may be were referred to therein instead of the authority at present exercising powers under the said byelaws and the district of that authority respectively. Provided that any proceedings which if this Order had not been made might have been taken by the said authority for any offence committed before the commencement of this Order against any byelaws and regulations made by that authority or their predecessors and in force immediately before the commencement of this Order in any part of the added areas or in the excluded part of Darlington as the case may be may be taken by the Corporation or the Rural Council as the case may require as if those byelaws and regulations had remained in force and the Corporation or the Rural Council as the case may be had been substituted therein for the authority at present exercising powers under the said byelaws and regulations.

Town clerk
and other
officers con-
tinued.

Art. XIV.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough
auditors.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the Borough auditors until the next ordinary day of election of Borough auditors.

Actions &c.
not to abate.

Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Corporation
property &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the

Borough Sections 94 96 97 98 and 100 of that Act and the Second Schedule to that Act shall be repealed. A.D. 1915.

—
*Darlington
Order.*

(2) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

Art. XIII. Subject to the provisions of this Order—

Byelaws &c.

(1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws orders or regulations or list of tolls or table of fees and payments or scale of charges may be altered repealed or revoked :

(2) All byelaws and regulations made by the Corporation or by the Rural Council or their predecessors and in force immediately before the commencement of this Order in the excluded part of Darlington or in any part of the added areas as the case may be and all orders made by the County Council which are in force in the added areas (so far as the same or similar orders have been or could be made by the Corporation) shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the authority at present exercising powers under the said byelaws or have been sent to the surveyor or clerk to that authority one month at least before that date and have not been disapproved by that authority As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation or by the Rural Council as the case

benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

A.D. 1915.

Darlington
Order.

Art. XVII. Subject to the provisions of this Order—

- (1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888 : Property &c.
of Rural
Council.
- (2) The Rural Council shall cease to exercise any powers or have any duties within the added areas : Cesser of
jurisdiction.
- (3) (a) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in either of the existing Parishes of Cockerton or Haughton-le-Skerne for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Council of the parish under that Act and the balances (if any) shall be paid to the Corporation ; Arrears of
rates &c.
- (b) All arrears of rates made by the Corporation and all other payments which at the commencement of this Order are due or owing to the Corporation in respect of hereditaments in the excluded part of Darlington may be collected and recovered as if this Order had not been made :
- (4) Any balances in the hands of the Overseers of the Parishes of Cockerton Darlington and Haughton-le-Skerne at or Adjustment
of balances.

A.D. 1915.

*Darlington
Order.*

immediately before the commencement of this Order and any sum collected after the commencement of this Order in respect of any rate made before that date and levied upon any rateable hereditament in the added areas in the excluded part of Cockerton or in the excluded part of Darlington shall be a matter for adjustment under Section 62 of the Act of 1888 :

Adaptation
of provisions
as to adjust-
ment.

- (5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

- (6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish or township that section shall have effect—

(a) As if the Overseers of the Parishes of Darlington and Haughton-le-Skerne and the Townships of Archdeacon Newton and Blackwell and the persons who immediately before the commencement of this Order were the Overseers of the Parish of Cockerton or where the circumstances of the case so require any persons who may be substituted for those persons by an order of the Local Government Board were within the meaning of the said section as applied by this Article authorities affected by this Order ;

(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section ; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:— A.D. 1915.
Darlington
Order.

“ (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.”

“ (7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Local Government Board may authorise or direct.”

Art. XVIII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable. Mortgage debts of Corporation.

Art. XIX.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 and the Public Libraries Acts 1892 to 1901 shall be in force in and apply to the Borough as if the same had been adopted therein and subject to the provisions of this Order the provisions of those Acts shall cease to be in force in the excluded part of Darlington. Adoptive Acts.

(2) Subject to the provisions of any order which the Local Government Board or a Secretary of State may hereafter make— Powers under Public Health Acts Amendment Act 1907.

(a) The provisions of any order made by the Local Government Board or by the Secretary of State and declaring to be in force in the existing Borough any Parts or Sections of the 7 Edw. 7. c. 53.

A.D. 1915.

*Darlington
Order.*

Public Health Acts Amendment Act 1907 shall cease to be in force in the excluded part of Darlington but shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough :

(b) The provisions of any order made by the Local Government Board or by the Secretary of State and declaring to be in force in the several contributory places in the Rural District any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Rural District extended and applied to the Rural District as altered by this Order.

(3) Nothing in subdivisions (1) and (2) of this Article shall—

(a) affect the operation prior to the commencement of this Order of any such provisions as are referred to in those subdivisions or anything duly done or suffered thereunder; or

(b) affect any right privilege obligation or liability acquired accrued or incurred under any such provisions; or

(c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions; or

(d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Powers under
Sections 33
and 34 of
Act of 1894.

Art. XX. Subject to the provisions of any order which the Local Government Board may hereafter make the provisions of any order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough any of the matters mentioned in Section 33 or Section 34 of the Act of 1894 and in that order shall be deemed to have effect as if any reference in those provisions to the existing Borough or to the existing Parish of Darlington extended and applied to the Borough or to the Parish of Darlington as the case may be.

Art. XXI. For the purposes and subject to the provisions of the Education Acts 1870 to 1914—

Transfer of
liabilities
attaching
to County
Council in

(1) All contracts made by the County Council and all debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school

situate within the added areas or with respect to the officers teachers and servants of the school shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

respect of
public ele-
mentary
school to
Corporation.

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) Any byelaws in force in the existing Borough or in the existing Township of Blackwell immediately before the commencement of this Order shall from and after that date apply to the Borough or to the Township of Blackwell as the case may be until revoked or altered and from and after that date any byelaws then in force in the added areas or in the excluded part of Darlington shall cease to be in force:
- (3) Any managers of any public elementary school in the added areas who were appointed by the Parish Council of the parish in which the school is situated or by the County Council shall vacate office at the commencement of this Order.

Education
byelaws.

School
managers.

Art. XXII.—(1) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts Provided that no approval sanction or authorisation of the vestry of the Parish of Darlington shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Corporation
to be Burial
Board for
Borough.

(2) The execution of the Burial Acts by the Corporation shall cease within the excluded part of Darlington.

Cessation of
Burial Acts
in excluded
part of Dar-
lington.

(3) Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

Art. XXIII.—(1) The added part of Haughton-le-Skerne shall be separated from the existing Parish of Haughton-le-Skerne and together with the added part of Cockerton shall be amalgamated with the existing Parish of Darlington.

Alteration of
parishes.

A.D. 1915.

*Darlington
Order.*

(2) The excluded part of Darlington shall be separated from the existing Parish of Darlington and shall be amalgamated with the existing Township of Blackwell.

(3) The excluded part of Cockerton shall be amalgamated with the existing Township of Archdeacon Newton.

Adoptive
Acts Byelaws
&c. of Rural
Council made
applicable to
excluded
parts of
Cockerton
and Darlington.

Art. XXIV.—(1) The provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts shall be in force in and apply to the Rural District as altered by this Order.

(2) Any byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in the existing Township of Archdeacon Newton or in the existing Township of Blackwell shall until they are repealed altered or revoked extend to and be in force within the Township as altered by this Order.

(3) All the powers rights duties capacities liabilities and obligations of an Urban District Council with which the Rural Council are now invested in pursuance of any order issued by the Local Government Board under the Public Health Acts in respect of either of the contributory places of Archdeacon Newton or Blackwell shall be deemed to vest in and attach to the Rural Council in respect of the contributory place as altered by this Order.

Rural District
Councilors and
Guardians.

Art. XXV. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:—

(1)—(a) The number of Guardians for the Darlington Union shall be increased from fifty-four to fifty-five and the number of Guardians for the Parish of Darlington shall be increased from nineteen to twenty-one;

(b) The Parish of Darlington shall for the purposes of the election of Guardians be divided into seven wards one of which to be named the Cockerton and Harrowgate Hill Ward shall comprise the areas of the Cockerton and Harrowgate Hill Wards of the Borough formed by Article VIII. of this Order for the purposes of the election of Councilors and the remaining six wards shall be respectively co-terminous in area with and shall bear the same names as the remaining wards into which the Borough is by that Article divided for those purposes;

(c) Three Guardians shall be elected for each of the said wards;

(d) The nineteen persons who at the commencement of this Order are holding the office of Guardian of the Poor for

the wards of the existing Parish of Darlington together with the person who at the said date is holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Cockerton and who shall thereafter cease to hold the office of Rural District Councillor shall be allocated by the Board of Guardians of the Darlington Union at their meeting held next before that date to the wards of the Parish of Darlington as follows that is to say two to the Cockerton and Harrowgate Hill Ward and three to each of the remaining wards and the persons so allocated shall be deemed to have been elected for those wards respectively;

A.D. 1915.

*Darlington
Order.*

(e) As soon as practicable after the commencement of this Order an additional Guardian shall be elected for the Cockerton and Harrowgate Hill Ward of the Parish of Darlington and the person so elected together with the other twenty persons who by virtue of the foregoing provisions of this Article will be allocated by the Guardians to the wards of the Parish of Darlington shall retire from office on the Fifteenth day of April One thousand nine hundred and sixteen:

(2) The persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Haughton-le-Skerne for the existing Township of Blackwell and for the existing united Townships of Archdeacon Newton and Walworth respectively shall be deemed to have been elected for and shall represent the Parish of Haughton-le-Skerne the Township of Blackwell and the united Townships of Archdeacon Newton and Walworth respectively until the Fifteenth day of April One thousand nine hundred and sixteen.

Art. XXVI.—(1) Subject to the provisions of this Order the Parish Council of the existing Parish of Cockerton shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council or to the Parish Council of the existing Parish of Haughton-le-Skerne shall so far as regards the added part of Cockerton or the added part of Haughton-le-Skerne be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part in each case had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part in each case for the purpose or by virtue of those powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities

Parish Coun-
cils.

A.D. 1915.
 —
Darlington
Order.

aforesaid Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Cockerton or the added part of Haughton-le-Skerne by virtue of this Order be transferred to and vest in and attach to the Corporation.

(2) The Parish Councils of the existing Parish of Haughton-le-Skerne and the existing Township of Blackwell shall be deemed to have been elected and shall be the Parish Councils for the Parish of Haughton-le-Skerne and the Township of Blackwell respectively.

(3) The accounts of the Parish Council of the existing Parish of Cockerton and of their committees and officers if any shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made :

Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the treasurer of the Borough and shall be a matter for adjustment under Section 62 of the Act of 1888.

Valuation
 lists.

Art. XXVII. Until new valuation lists are in force—

- (1) The portions of the valuation lists of the existing Parishes of Cockerton and Haughton-le-Skerne which respectively relate to hereditaments in the added part of Cockerton and the added part of Haughton-le-Skerne shall be deemed to form part of the valuation list of the Parish of Darlington :
- (2) The remaining portion of the valuation list of the existing Parish of Cockerton shall be deemed to form part of the valuation list of the Township of Archdeacon Newton :
- (3) The remaining portion of the valuation list of the existing Parish of Haughton-le-Skerne shall be deemed to be the valuation list of the Parish of Haughton-le-Skerne :
- (4) The portion of the valuation list of the existing Parish of Darlington which relates to hereditaments in the excluded part of Darlington shall be deemed to form part of the valuation list of the Township of Blackwell.

County rate
 basis.

Art. XXVIII.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered—

- (a) By the omission therefrom of the reference to the total annual value of the property in the Parish of Cockerton and by

the addition to the amount appearing therein as the total annual value of the property in the existing Township of Archdeacon Newton of such a sum as will represent the annual value of the property in the part of the existing Parish of Cockerton by this Order included in the Township of Archdeacon Newton;

A.D. 1915.

*Darlington
Order.*

(b) By the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Haughton-le-Skerne of such a sum as will represent the annual value of the property in the part of the parish by this Order included in the Parish of Darlington;

(c) By the addition to the amount appearing therein as the total annual value of the property in the existing Township of Blackwell of such a sum as will represent the annual value of the property in the part of the parish of Darlington by this Order included in the Township of Blackwell.

(2) For the purposes of this Article the annual value of the property in the part of a parish which is included by this Order in another parish or township shall be the amount which bears the same relation to the total annual value of the existing parish as the assessable value of the property in the included part of the existing parish bears to the total assessable value of property in the existing parish and the total annual value of the existing parish shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or in the part included in another parish or township as the case may require.

Art. XXIX. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes and townships affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation:

*Saving for
existing lists
of parliamen-
tary voters
&c.*

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any parish meeting the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

A.D. 1915

Darlington
Order.

Settlement
and removal
of the poor.

Art. XXX. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say:—

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Cockerton Darlington or Haughton-le-Skerne or the existing Townships of Archdeacon Newton or Blackwell by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

- (i) in the existing Parish of Darlington; or
- (ii) in the added part of Cockerton; or
- (iii) in the added part of Haughton-le-Skerne; or
- (iv) in the part of the existing Parish of Haughton-le-Skerne which by virtue of this Order will form the Parish of Haughton-le-Skerne; or
- (v) in the existing Township of Archdeacon Newton; or
- (vi) in the excluded part of Cockerton; or
- (vii) in the existing Township of Blackwell; or
- (viii) in the excluded part of Darlington

shall be deemed to have acquired or to be in the course of acquiring in the first second and third cases a settlement in the Parish of Darlington in the fourth case a settlement in the Parish of Haughton-le-Skerne in the fifth and sixth cases a settlement in the Township of Archdeacon Newton and in the seventh and eighth cases a settlement in the Township of Blackwell and in each case as if the existing parish or township or the specified part of the existing parish or township were and had always been the parish or township or a part of the parish or township in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Darlington Union by reason of residence—

- (i) in the existing Parish of Darlington; or
- (ii) in the added part of Cockerton; or
- (iii) in the added part of Haughton-le-Skerne; or

(iv) in the part of the existing Parish of Haughton-le-Skerne which by virtue of this Order will form the Parish of Haughton-le-Skerne; or

A.D. 1915.

Darlington Order.

(v) in the existing Township of Archdeacon Newton; or

(vi) in the excluded part of Cockerton; or

(vii) in the existing Township of Blackwell; or

(viii) in the excluded part of Darlington

shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the first second and third cases in the Parish of Darlington in the fourth case in the Parish of Haughton-le-Skerne in the fifth and sixth cases in the Township of Archdeacon Newton and in the seventh and eighth cases in the Township of Blackwell.

Art. XXXI. Notwithstanding the alteration in the areas of parishes and townships effected by this Order all contribution orders made by the Guardians of the Poor of the Darlington Union and all precepts made by the Corporation or by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Saving for contribution orders and precepts.

Art. XXXII.—(1) All sums in respect of rates made by the Overseers of the Poor of the existing Parish of Darlington or of the existing Parish of Haughton-le-Skerne and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parish of Darlington or of the Parish of Haughton-le-Skerne as the case may be as if this Order had not been made.

Arrears of rates.

(2) All sums in respect of rates made by the Overseers of the Poor of the existing Parish of Cockerton and due or owing at the commencement of this Order shall be collected and recovered in respect of the added part of Cockerton by the Overseers of the Poor of the Parish of Darlington and in respect of the excluded part of Cockerton by the Overseers of the Poor of the Township of Archdeacon Newton.

Art. XXXIII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Ecclesiastical divisions and charities.

PART III.

CONSTITUTION OF COUNTY BOROUGH.

Art. XXXIV. The Borough shall on the First day of April One thousand nine hundred and fifteen be constituted a County Borough and all the provisions of the Act of 1888 respecting County Boroughs shall apply to the Borough as if the Borough had been named in the

Constitution of County Borough.

A.D. 1915. Third Schedule to the Act of 1888 and as if Durham had been specified in that Schedule as the County in which the Borough should be deemed for the purposes of the Act of 1888 to be situate:

*Darlington
Order.*

Provided that for the purposes of the said provisions "the appointed day" shall be deemed to mean the First day of April One thousand nine hundred and fifteen.

Adjustment
between new
County
Borough and
County.

Art. XXXV.—(1) An equitable adjustment shall be made respecting the distribution of the proceeds of the local taxation licences of the estate duty grant and of the Local Taxation (Customs and Excise) duties and respecting all other financial relations or questions between the County and the Borough and in any case where the constitution of the County Borough by this Order affects the distribution of the said proceeds between the County on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution and financial relations or questions equitable adjustments may be made between the areas interested.

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 Section 88 of the Finance (1909-10) Act 1910 the Revenue Act 1911 and any subsequent Act have been paid or will be payable in lieu of those proceeds.

7 Edw. 7. c. 13.
8 Edw. 7. c. 16.
10 Edw. 7. c. 8.
1 Geo. 5. c. 2.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the County and the County Boroughs affected and if such adjustment has not been made before the First day of April One thousand nine hundred and sixteen then on the application of any Council interested the Local Government Board may if they think fit either make the adjustment themselves or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustment as aforesaid shall not have been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to

be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

A.D. 1915.

*Darlington
Order.*

Provided—

(a) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and

(b) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or any award made under this Article.

Art. XXXVI.—(1) An equitable adjustment shall be made between the County and the Borough respecting the interest of the Borough in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

Adjustment
for purposes
of Licensing
(Consolida-
tion) Act
1910.

10 Edw. 7. &
1 Geo. 5.
c. 24.

(2) Such adjustment shall be made by agreement between the Compensation Authorities (as defined by the Licensing (Consolidation) Act 1910) for the County and for the Borough within twelve months from the First day of April One thousand nine hundred and fifteen or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Art. XXXVII.—(1) The four County Councillors representing the electoral divisions into which the existing Borough is divided who are in office on the First day of April One thousand nine hundred and fifteen shall go out of office on that date and their places shall not be filled up.

Alteration
in County
Councillors
and County
Aldermen.

(2) Subject to the provisions of Section 54 of the Act of 1888—

(a) The number of County Councillors for the County shall be reduced from seventy-eight to seventy-four and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered as aforesaid shall be further altered and shall have effect accordingly and any casual vacancy occurring in the office of County Councillor for any of the electoral divisions into which the existing Borough is divided between the date of the Act of Parliament confirming this Order and the First day of April One thousand nine hundred and fifteen shall not be filled up;

A.D. 1915.

*Darlington
Order.*

(b) The number of Aldermen for the County may remain unaltered until the ordinary day of election of Aldermen in the year one thousand nine hundred and sixteen but at that election twelve Aldermen only shall be elected in place of those who then go out of office Provided that no election to fill a casual vacancy among the Aldermen who will go out of office in the year one thousand nine hundred and sixteen shall be held until their number has been reduced to less than twelve;

(c) The person who immediately before the First day of April One thousand nine hundred and fifteen is the County Councillor representing the Aycliffe Electoral Division of the County shall continue to represent that electoral division as if he had been originally elected to represent that division as diminished by the constitution of the County Borough.

(3) Save as aforesaid no other County Councillor or County Alderman shall be deemed to lose his qualification or to vacate his office by reason of the constitution of the County Borough.

PART IV.

MISCELLANEOUS PROVISIONS.

Compensa-
tion to exist-
ing officers.

Art. XXXVIII.—(1) Every clerk to justices and officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2) For the purposes of subdivision (1) of this Article any clerk to justices or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

A.D. 1915.
Darlington
Order.

(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Art. XXXIX. For the purpose of defraying the costs of obtaining this Order and any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board determine.

Borrowing
powers for
purposes of
Order.

During the continuance of the present war and twelve months thereafter the consent of the Treasury shall be required to the borrowing of any money under the powers conferred by this Order.

Art. XL. This Order may be cited as the Borough of Darlington Short title.
Order 1914.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
17 & 18 Vict. c. clxxxi. - -	The Darlington Local Board Act 1854.
24 & 25 Vict. c. lxxvii. - -	The Darlington Local Board Act 1861.
35 & 36 Vict. c. xxxiv. - -	The Darlington Borough Sewage Irrigation Act 1872.
35 & 36 Vict. c. cxii. - -	The Darlington Extension and Improvement Act 1872.

[Ch. ii.] *Local Government Board's* [5 GEO. 5.]
Provisional Order Confirmation (No. 23) Act, 1915.

A.D. 1915.

PART II.—CONFIRMATION ACTS.

*Darlington
Order.*

Session and Chapter.	Short Title.	Order thereby confirmed.
46 & 47 Vict. c. lxxxix.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1883.	The Darlington Order 1883.
48 & 49 Vict. c. lxii.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1885.	The Darlington Order 1885.
53 & 54 Vict. c. clxxxix.	The Electric Lighting Orders Confirmation (No. 4) Act 1890.	The Darlington Electric Lighting Order 1890.
59 & 60 Vict. c. cx.	The Local Government Board's Provisional Orders Confirmation (No. 18) Act 1896.	The Darlington Order 1896.
61 & 62 Vict. c. xciii.	The Electric Lighting Orders Confirmation (No. 10) Act 1898.	The Darlington Electric Lighting Order 1898.
2 Edw. 7. c. lxxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1902.	The Darlington Order 1902.
3 Edw. 7. c. lviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903.	The Darlington Order 1903.
6 Edw. 7. c. ci. -	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1906.	The Darlington Order 1906.
2 & 3 Geo. 5. c. cxxix.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1912.	The Darlington Order 1912.

Given under the Seal of Office of the Local Government Board
this Twenty-second day of June One thousand nine hundred
and fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

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